

PERSONNEL RECORDS AND FILE

A personnel file shall be kept for all employees of Loudoun County Public Schools. This file shall be retained within the Department of Human Resources and Talent Development.

A. Definitions

“Personnel Records” – Documents or information, however stored, relating to identifiable individuals maintained by Loudoun County Public Schools

“Personnel File” – A personnel file is the folder, electronic or otherwise, that includes demographic information, salary, contract information, licensure information, benefits information, training, policy acknowledgements and certifications, performance reviews, disciplinary memoranda, and letters of commendation.

All past and present employees have the right to review their personnel file in accordance with the Freedom of Information Act.

B. Maintenance of Personnel Records. The Department of Human Resources and Talent Development retains and maintains the official personnel file for each employee.

C. Confidentiality of Personnel Records. The Department of Human Resources and Talent Development is responsible for maintaining the security of each employee’s personnel file.

1. The School Board will generally protect the confidentiality of personnel files, personnel references, academic credits and other similar documents, but reserves the right to release such information in accordance with law and written School Board policy or regulation.

2. In the event that an employee or former employee engages in conduct which becomes the subject of public concern as reported in the news media, or such person otherwise discloses matters related to his/her employment to the news media, the School Board authorizes the Superintendent or designee to disclose accurate and relevant information regarding such person's actions and employment.

D. Employee’s Right to Review and Receive Copies of Personnel File. A former or current employee may request to review their personnel file and receive a copy of the file or requested portion thereof. The employee shall make the request in writing to the Department of Human Resources and Talent Development, or via the link on the Human Resources and Talent Development homepage. The Department of Human Resources and Talent Development shall schedule a time for the employee to review their file as expeditiously as possible following the request.

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E. Employees have the right to review their personnel file in the presence of an approved Human Resources member, in accordance with applicable law. Records that will not be considered part of the personnel file include, but are not limited to:

1. References and other pre-employment forms;
2. Interview forms;
3. Records which contain confidential personnel information regarding other employees;
4. Educational records relating to identifiable students; and
5. Confidential Human Resources and Talent Development reports or other investigative reports prepared in anticipation of litigation, for use in active administrative investigations, and/or protected by the attorney-client work product privileges.

F. At no time shall an employee or employee representative remove any materials from a personnel file.

G. Corrections to or Request to Remove Personnel Record Documents.

A former or current employee may submit a written request to the Department of Human Resources and Talent Development that a document in their file be corrected or removed from their personnel file due to a factual inaccuracy, such as an incorrect date or other objective error.

The Department of Human Resources and Talent Development will review the request based on a standard of review that considers whether a preponderance of the evidence (i.e., more likely than not) shows the document in question is inaccurate or incomplete.

1. Requests to correct or remove a document should be submitted as soon as practicable, but within the same school year (July 1–June 30).
2. If the request to remove or correct a document is denied, the employee may request that their original written request for a review of the document be included in their personnel file, along with the decision to deny their request. The employee must make this request within 30 calendar days of receiving the denial.

H. Restrictions on Requests to Remove Disciplinary Documents:

While this policy affords employees the right to seek to amend personnel file records, this right cannot be used to challenge or appeal a disciplinary action, an individual's opinion, or a substantive decision made by a school division about an

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employee. Such amendment procedure is intended to ensure the school division conforms to fair recordkeeping practices—not to supplant the accepted standards and procedures for making disciplinary decisions or personnel actions. Such requests should be filed using the applicable School Board Policy (i.e., School Board Policy 7310, School Board Policy 7018, or School Board Policy 7024).

I. All challenges to the content of the personnel file, including those denied under Section H, shall be resolved under this policy.

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Legal Ref.: Va. Code §§ [22.1-295.1](#) and [2.2-3700](#), et seq.